The Rule of Law: Illiberal Europe?

The EU enlargement of 2004, which brought into the Union eight countries from Central Europe (and two from Europe's South) was the very culmination of a period that began with the fall of the Berlin Wall and was hailed as the end of history. (Bulgaria and Romania followed in 2007.) During this quarter of a century, Europe (and the world) saw the end of Communism in Europe (though not globally), the (re)creation of (new) independent states, and their accession to the EU and NATO. This was the feast of Europe's idealism, a victory for the region, a window of opportunity well earned, but also quite unique and rare in international relations.

But already in 2001 came the wake-up call of 9/11, a sign that this historic window of opportunity was closing. The attack on the Twin Towers had a global impact, though the alarm clock was set for the West in particular. After the invasion of the Taliban's Afghanistan in 2001, which had a quite clear rationale, the US invaded Iraq in March of 2003 for reasons not totally understood and poorly linked to the terrorist threat, leading to opposition from various corners. However in Central Europe, Poland joined the Iraq military campaign, morally supported by the wider so-called 'Coalition of the Willing', which included a number of other Central European countries who thus seized the opportunity of boosting their chances of NATO membership.

The invasion of Iraq was another milestone announcing that the velvet era in international relations was coming to an end, an era in which empires collapsed with little collateral damage, regimes swiftly changed and new small states were, almost without objections, allowed to come into existence. Now it was again the Martian vision of the world that was gaining traction. Yet this view of the world was not just simplistic and brutal. It also included a (conservative or liberal) belief in classic human freedom as something universal, attainable by all. Therefore, it was not only the Central Europeans that were worthy of a regime change to free themselves of Communist oppression: in the Middle East, Arab peoples also deserved better than to be ruled by ruthless dictators, even if freeing them